

SENATE No. 3008

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

SENATE, April 1, 2026.

The committee on Transportation, to whom was referred the petitions (accompanied by bill, Senate, No. 2438) of Michael F. Rush relative to unmanned aerial systems; and (accompanied by bill, Senate, No. 2454) of John C. Velis for legislation relative to unmanned aerial vehicles in the Commonwealth, report the accompanying bill (Senate, No. 3008).

For the committee,
Brendan P. Crighton

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An Act relative to unmanned aerial vehicles in the commonwealth.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of chapter 90 of the General Laws is hereby amended by inserting
2 the following definitions:-

3 “Critical facility”, any of the following: (1) a critical infrastructure facility as defined in
4 section 369 of the federal aviation administration extension, safety and security act of 2016 and
5 the federal aviation administration reauthorization act of 2018; (2) a commercial distribution
6 center; (3) a federal, state, county, or municipal court; (4) a police station, sheriff's office, state
7 highway patrol station, or premises controlled by the bureau of criminal identification and
8 investigation; (5) a federal, state, county, or municipal jail or prison or any other facility in which
9 persons are incarcerated; or (6) a hospital that receives air ambulance services.

10 “Unmanned aerial vehicle”, an aircraft that is operated without the possibility of direct
11 human intervention from within or on the aircraft, and associated elements (including
12 communication links and the components that control the unmanned aircraft) that are required
13 for the operator to operate safely and efficiently in the national airspace system.

SECTION 2. Chapter 90 of the General Laws is hereby amended by inserting after section 63 the following section:-

Section 64. Unmanned aerial vehicles

Pursuant to this section, any person may operate an unmanned aerial vehicle in the commonwealth for personal, commercial, or public purposes; provided however, that any person operating an unmanned aerial vehicle shall comply with all applicable federal statutes and regulations pertaining to such devices. The operation of unmanned aerial vehicles shall not be subject to any municipal ordinances, bylaws or regulations.

No person shall equip or operate an unmanned aerial vehicle armed with a weapon capable of causing serious bodily injury or death or is otherwise capable of firing or releasing a projectile designed to cause serious bodily injury or death; provided, that such a violation of this section shall be punishable by a fine of \$2,000, or by imprisonment for not more than one year, or both; provided however, that federal, state, and municipal public safety personnel are exempted from this provision for the limited purpose of operating an unmanned aerial vehicle for the disposal of explosive ordinance.

No person shall operate an unmanned aerial vehicle in a manner so as to interfere with or disrupt the operation of aircraft as defined under section 35 of chapter 90, or otherwise impede the operations of any airport, air navigation facility, or restricted landing area as defined under section 35 of chapter 90; provided, that such a violation of this section shall be punishable by a fine of \$1,500, or by imprisonment for not more than one year, or both.

No person shall operate an unmanned aerial vehicle in a manner that disrupts, interrupts, or impairs the operations or activities conducted by law enforcement personnel, fire department

personnel, or emergency medical services personnel; provided, that such a violation of this section shall be punishable by a fine of \$1,000, or by imprisonment for not more than six months, or both.

No person shall operate an unmanned aerial vehicle anywhere within 500 feet of a critical facility for the purpose of photographing, recording, surveilling, damaging, or destroying said critical facility without the express written permission of governing authority of said facility or their designee; provided, that no person shall launch, operate, or land any unmanned aircraft system from any location within 500 feet of a United States military installation located within the Commonwealth, without the express written permission of both the state and the base commander or their designee; and provided further, that such a violation of this section shall be punishable by a fine of \$1,000, or by imprisonment for not more than one year, or both.

No person shall operate an unmanned aerial vehicle for the purpose of photographing or recording video of an individual on private real property owned or leased by the individual inclusive of the curtilage, where said individual would have a reasonable expectation of privacy, without said individual's consent or the express permission of federal, state, or municipal authorities empowered to conduct such surveillance; provided however, that any company as defined under section 1 of chapter 175, or person employed by such a company, shall be exempted from this provision, except as explicitly defined in regulations promulgated pursuant to this section. Improper use of an unmanned aerial vehicle under this paragraph shall be deemed a violation of section 1B of chapter 214 of the General Laws.

56 No provision of this section shall be construed to prevent the operation of unmanned
57 aerial vehicles by any department or agency of the Commonwealth or a municipality for any
58 purpose, except as expressly prohibited in this section.

59 Any law enforcement officer who observes a violation of this section, or of federal law
60 pertaining to the operation of unmanned aerial vehicles, committed by an operator of an
61 unmanned aerial vehicle may order the offender to state their true name and address and to
62 immediately land and cease the use of said unmanned aerial vehicle. Any refusal or obstruction
63 of such orders shall constitute refusal to submit to a police officer as defined in section 25 of
64 chapter 90, and may be punishable as such.

65 The Massachusetts Department of Transportation, in consultation with the executive
66 office of public safety and security, and the executive office of economic development, may
67 promulgate regulations to implement the provisions of this section.